

# Sri Somashekar vs Smt. Ashwini on 20 February, 2023

**Author: Alok Aradhe**

**Bench: Alok Aradhe**

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MFA No. 8611 of 2016

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 20TH DAY OF FEBRUARY, 2023

PRESENT

THE HON'BLE MR JUSTICE ALOK ARADHE

AND

THE HON'BLE MR JUSTICE VIJAYKUMAR A PATIL

MISCELLANEOUS FIRST APPEAL NO.8611 OF 2016

BETWEEN:

SRI. SOMASHEKAR  
S/O SHIVARAMACHARI T  
AGED ABOUT 36 YEARS  
R/A NO 14, 6TH A CROSS,  
HANUMAGIRI LAYOUT  
CHIKKASANDRA MAIN ROAD,  
BANGALORE - 560061

...APPELLANT

(BY SRI. K MANOHARA CHARI, ADVOCATE)

Digitally  
signed by  
GAYATHRI N  
Location:  
HIGH COURT  
OF  
KARNATAKA

AND:

SMT. ASHWINI  
W/O RAMAKRISHNA  
  
AGED ABOUT 30 YEARS  
R/A NO 695/3, KADIRENAHALLI  
BSK 2ND STAGE,  
BANGALORE - 560 070

...RESPONDENT

(BY SRI. LOKESHA G, ADVOCATE FOR C/R)

THIS MFA IS FILED UNDER SECTION 19(1) OF THE  
FAMILY COURTS ACT, AGAINST THE JUDGMENT AND DECREE

DATED 28.10.2016 PASSED IN M.C.NO.2308/2013 ON THE FILE OF THE IV ADDITIONAL PRINCIPAL JUDGE, C/c. OF I ADDITIONAL PRINCIPAL JUDGE, FAMILY COURT, BENGALURU, DISMISSING THE PETITION FILED U/S 13(1) (ia) AND (ib) OF THE HINDU MARRIAGE ACT AND ETC.

THIS APPEAL, COMING ON FOR HEARING, THIS DAY

ALOK ARADHE J., DELIVERED THE FOLLOWING:

#### JUDGMENT

This appeal under Section 19(1) of the Family Courts Act, 1984, has been filed against the judgment and decree dated 28.10.2016 by which petition filed by the appellant/ husband under Section 13(1)(ia)&(ib) of the Hindu Marriage Act, 1955, has been dismissed.

2. Learned counsel for the parties along with parties present. They have invited attention of this Court to the memo filed on behalf of the parties, which has been duly signed by them.

3. Learned counsel for the parties further submit that the dispute between the parties has been amicably resolved. The terms and conditions of the compromise arrived at between the parties read as under :-

a. Marriage between the parties performed on 23.04.2007 is dissolved by decree of divorce.

b. The appellant shall pay a sum of Rs.5,00,000/- (Rupees Five Lakhs only) by way of permanent alimony to the respondent. c. Out of Rs.5,00,000/- a sum of Rs.1,00,000/- has been paid to the respondent by way of Demand Draft bearing No.207410 dated 20.02.2023 drawn on Canara Bank in favour of the respondent.

d. Remaining sum of Rs.4,00,000/- shall be paid by the appellant to the respondent on or before 20.04.2023.

4. In view of the aforesaid compromise arrived at between the parties, the marriage performed on 23.04.2007 is dissolved by a decree of divorce. The appeal is disposed of in terms of the compromise arrived at between them.

Sd/-

JUDGE Sd/-

JUDGE NG CT: SV